ORDINANCE 15-013Z

"AN ORDINANCE OF THE TOWN OF NORTH PROVIDENCE AMENDING ARTICLE III, CHAPTER 317, ENTITLED "SPECIAL FLOOD HAZARD AREAS AND FLOOD FRINGE LANDS OF THE TOWN OF NORTH PROVIDENCE ZONING ORDINANCE

WHEREAS, the Town Council of the Town of North Providence desires to amend, by Ordinance, its existing Ordinance, and more specifically, certain sections of Article III, Section 317 of its Zoning Ordinance, entitled "Special Flood Hazard Areas and Flood Fringe Lands."

WHEREAS, The Town Council of the Town of North Providence desires to amend, by Ordinance, the aforementioned Section of the Zoning Ordinance to comply with the Town of North Providence Flood Maps.

NOW, THEREFORE, BE IT HEREBY ORDAINED BY THE TOWN COUNCIL OF THE TOWN OF NORTH PROVIDENCE AS FOLLOWS:

SECTION ONE: That Chapter 317-2 (a) of the Code of Ordinances entitled "Applicability " is hereby amended to read as follows:

§317-2 Applicability.

A. The Town elects to comply with the requirements of the National Flood Insurance Act of 1968 (P.L 90-488, as amended). The National Flood Insurance Program, established in the aforesaid act, provides that areas of the Town having a special flood hazard be identified by the Federal Emergency Management Agency and that floodplain management measures be applied in such flood hazard areas. The requirements of Section 317 shall apply to any construction or other development which lies wholly or partly within an area of special flood hazard, as identified as Zone A, AE, AH, AO, Al-30, and A99 on the Flood Insurance Rate Map (FIRM) and Flood Hazard Boundary Map prepared by the Federal Emergency Management Agency dated October 2, 2015. Said Flood Map, including any amendments adopted after the date hereof, is hereby made part of this Ordinance. The exact boundaries of the District may be defined by the 100-year base flood elevations shown on the FIRM and further defined by the Flood Insurance Study booklet dated October 2, 2015.

SECTION TWO: That Chapter 317-3 of the Code of Ordinances entitled " Definitions" is hereby amended to provide for the following, revised, definitions to replace the existing definitions within the current Ordinance:

Manufactured Home - A structure, transportable in one (1) or more sections, which is built on a permanent chassis and is designed for use with or without a permanent foundation when attached to the required utilities. "The term manufactured home" does not include a "recreational vehicle".

"New Construction- Structures for which the "start of construction" commenced on or after the effective date of an initial FIRM or after December 31, 1974, whichever is later, and includes any subsequent improvements to such structures. For floodplain management purposes, new construction means structures for which the start of construction commenced on or after the effective date of a floodplain management regulation adopted by a community and includes any subsequent improvements to such structures."

SECTION 3. ALL ORDINANCES OR PARTS THEREOF OF INCONSISTENT HEREWITH ARE HEREBY REPEALED.

SECTION 4. THIS ORDINANCE SHALL TAKE EFFECT UPON ITS ADOPTION.

APPROVED AS TO FORM
AND LEGALITY:

TOWN SOLICITOR

ADOPTED: Nov. 3, 2015

APPROVED: Nov. 4, 2015

Marjana Georgeus
Clerk

COUNCIL PRESIDENT

MAYOR